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Case Number: 25VECV03103 Hearing Date: July 28, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SARI AVERILL,

Plaintiff,

vs.

MLT WESTFIELD TOPANGA LLC; WESTFIELD TOPANGA; WESTFIELD INC.; WESTFIELD LLC; WESTFIELD GROUP URW; WESTFIELD TOPANGA OWNER LLC; UNIBAIL-RODAMCO-WESTFIELD (URW); WESTFIELD AMERICA LIMITED PARTNERSHIP; THE CHEESECAKE FACTORY, INC.; THE CHEESECAKE FACTORY RESTAURANTS, INC.; THE CHEESECAKE FACTORY; and DOES 4-100

Defendants.

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ORDER GRANTING DEFENDANT THE CHEESECAKE FACTORY, INC.'S MOTION TO QUASH SERVICE OF SUMMONS

I. BACKGROUND

This action arises from Plaintiff Sari Averill's ("Plaintiff") alleged slip-and-fall incident on July 23, 2023, at the Westfield Topanga premises. (See Compl., ¶ 4.) Plaintiff originally filed this action against MLT Westfield Topanga LLC, Westfield Topanga, Westfield Inc., Westfield LLC, Westfield Group URW, Westfield Topanga Owner LLC, Unibail-Rodamco-Westfield (URW), Westfield America Limited Partnership, and Does 1 through 100 (collectively, the "Westfield Defendants"). (See id., ¶ 1.)

Plaintiff alleges the Westfield Defendants breached their duty to maintain the premises in a reasonably safe condition by failing to timely address a hazardous, slippery condition on the floor, causing Plaintiff to slip, fall, and sustain injuries. (See id., ¶ 4.)

Plaintiff later dismissed certain Westfield Defendants and amended the Complaint to substitute Does 1 through 3 with The Cheesecake Factory, The Cheesecake Factory Restaurants, Inc., and The Cheesecake Factory Inc. The Cheesecake Factory, Inc. now moves to quash service of the summons on the ground Plaintiff was not genuinely ignorant of Defendant's identity or role when the Complaint was filed, and that Plaintiff improperly named Defendant after the statute of limitations had expired.

II. PROCEDURAL HISTORY

On June 4, 2025, Plaintiff filed her Complaint.

On July 15, 2025, the Westfield Defendants filed their Answer.

On April 13, 2026, Plaintiff moved to dismiss MLT Westfield Topanga LLC, Westfield Topanga, Westfield Inc., Westfield Group URW, and Westfield America Limited Partnership without prejudice.

On April 13, 2026, Plaintiff Amended the Complaint to name Does 1-3 as defendants The Cheesecake Factory, The Cheesecake Factory Restaurants Inc., and The Cheesecake Factory, Inc., respectively.

On June 5, 2026, The Cheesecake Factory, Inc., filed the instant Motion to Quash Service of Summons.

On June 23, 2026, Plaintiff filed an Opposition.

On July 1, 2026, The Cheesecake Factory, Inc., filed a Reply.

On July 10, 2026, the Court continued the hearing on this Motion. The Court ordered Plaintiff to submit the CCTV video footage and supplemental declaration and ordered Defendant to submit a supplemental reply.

On July 17, 2026, Plaintiff submitted supplemental declarations from herself, Sarah Smith, and her counsel.

On July 22, 2026, The Cheesecake Factory, Inc. filed a Supplemental Reply.

III. LEGAL STANDARD

Code of Civil Procedure § 474[1], provides, in relevant part, that “[w]hen the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint... and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly.” Section 474 is to be liberally construed. (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 593-594, fn. 12.)

A motion to quash may be used to challenge improper service of a defendant named through a Doe amendment. (See *Optical Surplus, Inc. v. Superior Court* (1991) 228 Cal.App.3d 776, 782-783.)²

Where a complaint is amended after the statute of limitations has run to identify a fictitiously named defendant, the amended complaint will “relate back” to and be deemed filed as of the date of the original complaint, if: (1) the original complaint stated a valid cause of action against the now-identified Doe defendant; (2) plaintiff was “genuinely ignorant” of the defendant’s identity or liability when the action was commenced; and (3) the amended complaint is based on the same general set of facts as the original complaint. (*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600-601; *McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-372.)

“Ignorance” includes ignorance of the facts connecting the defendant to the plaintiff’s injury, even if the plaintiff knew the defendant’s name or existence. (*Fuller v. Tucker* (2000) 84 Cal.App.4th 1163, 1170.) “Ignorance of the facts giving rise to a cause of action is the ‘ignorance’ required by section 474, and the pivotal question is, ‘did plaintiff know facts?’ not ‘did plaintiff know or believe that [he] had a cause of action based on those facts?’” (*McClatchy, supra*, 247 Cal.App.4th at p. 372.) The relevant inquiry is what facts the plaintiff actually knew at the time the original complaint was filed, not what the plaintiff could have discovered through reasonable diligence. (*General Motors Corp., supra*, 48 Cal.App.4th at p. 588; *Irving v. Carpentier* (1886) 70 Cal. 23, 26.)

The plaintiff’s ignorance must be genuine and in good faith, not feigned, and a plaintiff need not be aware of each and every detail concerning a person’s involvement before the plaintiff loses ignorance. (*McClatchy, supra*, 247 Cal.App.4th at p. 372.) However, a mere suspicion of wrongdoing does not defeat section 474. (*Id.*) If the plaintiff knew the defendant’s identity, but did not know facts that would cause a reasonable person to believe the defendant’s liability was probable, the requirements of section 474 are met. (*Id.* at p. 374.) “Ignorance of the facts is the critical issue, and whether it be due to misinformation or negligence is not relevant.” (*Dover v. Sadowinsky* (1983) 147 Cal.App.3d 113, 116.)

The requirement of good faith ignorance of the true name of a fictitiously designated defendant, as a prerequisite for amending the complaint to supply a name after the running of the statute of limitations, is designed to promote the policies supporting the statute of limitations. (*McGee Street Productions v. Workers’ Comp. Appeals Bd.* (2003) 108 Cal.App.4th 717.)

To defeat the amendment, the burden is on the defendant to show the plaintiff’s earlier awareness of the defendant’s identity and the facts creating that defendant’s liability. (*Breceda v. Gamsby* (1968) 267 Cal.App.2d 167, 179.)

IV. ANALYSIS

The Cheesecake Factory, Inc. (“Defendant”), now moves to quash Plaintiff’s service of summons.

The Court will grant the Motion. After reviewing the CCTV footage and supplemental declarations and Reply, the Court finds Defendant has shown Plaintiff had knowledge of Defendant’s alleged role in causing Plaintiff’s injuries. Defendant relied on *Optical Surplus v. Superior Court* (1991) 228 Cal.App.3d 776 in its Motion. In *Optical Surplus*, before the complaint was filed,

the plaintiff sent the later-named Doe defendant a demand letter expressly identifying the defendant's allegedly wrongful conduct and asserting the conduct was actionable. Similarly here, Defendant has shown Plaintiff had comparable pre-filing knowledge of Defendant's alleged role in causing Plaintiff's injuries. The CCTV footage shows at the time of the incident, Plaintiff's companion, Sarah Smith ("Smith"), had sufficient knowledge to reasonably believe Defendant was involved and possibly liable. (See Supp. Reply at 5:23-27.) The CCTV footage depicts Smith speaking to the patron who witnessed the cause of the spill (7:01:46 p.m.); Smith speaking to Defendant's employees around the area of the spill and presumably discussing the spill as Smith also takes photos of the floor (6:59:27 p.m.); and Smith approaching the patron while he was speaking to and showing Defendant's employee, who is holding a towel, where the spill occurred and Smith talks with the patron while the employee wipes the floor with the towel (7:01:46 p.m.).

The Court is unpersuaded that Plaintiff was unaware of facts connecting Defendant's alleged negligence until the CCTV footage was produced in discovery. As discussed above, Smith discussed with Defendant's employees and the patron regarding the spill and was present when Defendant's employee wiped the floor with a towel. The Court is unpersuaded that without the CCTV footage, Plaintiff would not have known of Defendant's potential liability. Moreover, Smith attests that a patron informed her the water was spilled by one of Defendant's other patrons. (See Declaration of Sarah Smith filed July 17, 2026 ("Decl. Smith"), ¶ 6.) The Opposition rests on the arguments the CCTV footage provided Plaintiff with the knowledge that Defendant's employee received notice of a dangerous condition on the floor before Plaintiff fell and took no action to warn, clean, or report it. (See Opp. at 3:15-18.) However, specific knowledge of whether Defendant was put on notice is not required. All that is required is that Plaintiff knew facts that would cause a reasonable person to believe Defendant's liability was probable. The CCTV footage evidence satisfies this standard as it demonstrates Plaintiff, and Smith knew facts establishing Defendant's connection to the injury at the time Plaintiff fell and when the action commenced. This evidence also contradicts Smith's testimony that she did not believe Defendant was responsible and supplements the facts provided by her testimony that she spoke to one of Defendant's employees and a patron. (See Smith Decl., ¶ 6, 8; Declaration of Christopher Mesaros filed July 17, 2026, ¶ 19-20 [attesting that Smith did not observe one of Defendant's employees cleaning the floor with a towel].)

In *McClatchy*, section 474 did not apply because the plaintiff already knew the key facts connecting the defendant to the alleged wrongdoing before filing, and the later-discovered information did not add any materially new facts to the plaintiff's theory of liability. *McClatchy* holds that the relevant inquiry regarding ignorance is not whether plaintiff knew of defendant's existence or identity, but whether plaintiff was ignorant of facts giving rise to a cause of action against defendant. Here, Plaintiff's discussion of the incident with Defendant's employee's and the witnessing patron, as depicted by the CCTV footage defeats Plaintiff's claim of genuine ignorance under section 474. Unlike in *McClatchy*, Defendant has shown Plaintiff knew facts connecting Defendant to the alleged negligence before the CCTV footage was produced, and therefore the requirements of section 474 are not met.

Accordingly, the Court GRANTS Defendant's Motion to Quash.

V. CONCLUSION

Accordingly, the Court GRANTS Defendant's Motion to Quash..

IT IS SO ORDERED.

DATED: July 28, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.